

HOUSE BILL 1545

By Dixie

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 40, relative to criminal history records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 32, is amended by adding
the following as a new part:

40-32-201.

(a) A person may petition the court in which the person was convicted of a
criminal offense to seal the person's criminal history records for the offenses listed in §
40-32-203. At the time of filing a petition, the person must pay a fee of five hundred
dollars (\$500) to be used by the clerk to offset the cost of sealing records.

(b) Upon determining that the person is eligible under § 40-32-202 to have the
person's criminal history records sealed, the court shall enter an order sealing the
records from all public records requests. The sealed records may continue to be used
for the following purposes:

(1) By the Tennessee bureau of investigation or the federal bureau of
investigation, in determining whether to approve a firearms transaction, pursuant
to § 39-17-1316, or a handgun carry permit application, pursuant to § 39-17-1351
or § 39-17-1366;

(2) By the department of health in maintaining a registry of persons who
have abused, neglected, or misappropriated the property of vulnerable
individuals, pursuant to title 68, chapter 11, part 10; and

(3) By the Tennessee peace officer standards and training commission in
determining, pursuant to § 38-8-104(g), whether a person has any recorded

convictions in this state and meets the minimum qualifications for law enforcement officers as provided in § 38-8-106.

40-32-202.

A person is an eligible petitioner under this part if the person:

(1) Has fulfilled the requirements of the sentence imposed by the court in which the person was convicted of the offense, including:

(A) Payment of all fines, restitution, court costs, and other assessments;

(B) Completion of any term of imprisonment or probation;

(C) Meeting all conditions of supervised or unsupervised release;

and

(D) If so required by the conditions of the sentence imposed, remaining free from dependency on or abuse of alcohol or a controlled substance or other prohibited substance for a period of no less than one (1) year;

(2) Is not subject to any pending criminal charges; and

(3) Has not been convicted of a criminal offense for at least five (5) years, beginning after the completion of any term of imprisonment, supervised or unsupervised release, or probation.

40-32-203.

Criminal history records related to a conviction for the following offenses and any offense committed prior to November 1, 1989, that would constitute any of the following offenses if committed under current law are eligible to be sealed under this part:

(1) RICO offense, as prohibited by § 39-12-205;

- (2) Reckless endangerment by discharging firearm into unoccupied habitation, as prohibited by § 39-13-103;
- (3) Assisted suicide, as prohibited by § 39-13-216;
- (4) Custodial interference where person not voluntarily returned by defendant, as prohibited by § 39-13-306;
- (5) Promoting prostitution, as prohibited by § 39-13-515;
- (6) Aggravated prostitution, as prohibited by § 39-13-516;
- (7) Promoting travel for prostitution, as prohibited by § 39-13-533;
- (8) Unlawful wiretapping or electronic surveillance, as prohibited by § 39-13-602;
- (9) Distribution or delivery of substance as a hoax device, as prohibited by § 39-13-808(b)(2);
- (10) Knowing dissemination of illegally recorded cellular communication, as prohibited by § 39-13-604(c)(2);
- (11) Unlawful photography with dissemination of photographs and victim under thirteen (13) years of age or in a position of trust, as prohibited by § 39-13-605(d)(3);
- (12) Burglary, other than habitation, as prohibited by § 39-13-1002;
- (13) Theft of property, as prohibited by § 39-14-103;
- (14) Theft of services, as prohibited by § 39-14-104;
- (15) Extortion, as prohibited by § 39-14-112;
- (16) Forgery, valued at least one thousand dollars (\$1,000) but no more than nine thousand nine hundred ninety-nine dollars (\$9,999), as prohibited by § 39-14-114;
- (17) Criminal simulation, as prohibited by § 39-14-115;

- (18) Hindering secured creditors, as prohibited by § 39-14-116;
- (19) Fraud in insolvency, as prohibited by § 39-14-117;
- (20) Illegal possession or fraudulent use of credit card or debit card, as prohibited by § 39-14-118;
- (21) Worthless checks, as prohibited by § 39-14-121;
- (22) Destruction of valuable papers, as prohibited by § 39-14-130;
- (23) Destruction or concealment of will, as prohibited by § 39-14-131;
- (24) Fraudulent or false insurance claims, as prohibited by § 39-14-133;
- (25) Fraudulent qualifying for set-aside programs, as prohibited by § 39-14-137;
- (26) Theft of trade secrets, as prohibited by § 39-14-138;
- (27) Sale of recorded live performances without consent, as prohibited by § 39-14-139;
- (28) Unauthorized solicitation for police, judicial, or safety association, as prohibited by § 39-14-143;
- (29) Fraudulent transfer of motor vehicle, as prohibited by § 39-14-147;
- (30) Communication theft, as prohibited by § 39-14-149;
- (31) Identity theft, as prohibited by § 39-14-150;
- (32) Use of counterfeit mark or logo, as prohibited by § 39-14-152;
- (33) Home improvement fraud, as prohibited by § 39-14-154;
- (34) Injuring guide dog, as prohibited by § 39-14-208;
- (35) Arson, as prohibited by § 39-14-301;
- (36) Setting fire to personal property or land, as prohibited by § 39-14-303;
- (37) Vandalism, as prohibited by § 39-14-408;

- (38) Critical infrastructure vandalism, as prohibited by § 39-14-411;
- (39) Aggravated criminal littering, as prohibited by § 39-14-505;
- (40) Altering, damaging, or attempting to damage or destroy any computer, computer system or computer network, or computer program or data, as prohibited by § 39-14-602;
- (41) Violation of Tennessee Personal and Commercial Computer Act - value of at least one thousand dollars (\$1,000) to fifty-nine thousand nine hundred ninety-nine dollars (\$59,999), as prohibited by § 39-14-602;
- (42) Computer crimes violation in connection with act of terrorism, as prohibited by § 39-14-602(d);
- (43) Unsolicited bulk electronic mail, as prohibited by § 39-14-603;
- (44) Sale, purchase, possession, or use of automated sales suppression device, as prohibited by § 39-14-704;
- (45) Theft of animal from or damage to an animal facility - value exceeding five hundred dollars (\$500), as prohibited by § 39-14-803;
- (46) Money laundering offense, as prohibited by § 39-14-903;
- (47) Flagrant nonsupport, as prohibited by § 39-15-101(d);
- (48) Attempt to procure criminal miscarriage, as prohibited by [former] § 39-15-201(b)(2) [repealed];
- (49) Failure to observe waiting period before giving consent to abortion, as prohibited by § 39-15-202(d);
- (50) Failure or refusal of physician or hospital to preserve the life of an infant delivered during an abortion, as prohibited by § 39-15-206;
- (51) Unlawful use of aborted fetus, as prohibited by § 39-15-208;

(52) Public servant accepting bribe or offering bribe to public servant, as prohibited by § 39-16-102;

(53) Public servant soliciting unlawful compensation, as prohibited by § 39-16-104;

(54) Buying and selling in regard to public offices, as prohibited by § 39-16-105;

(55) Bribing a witness, as prohibited by § 39-16-107;

(56) Bribing a juror, as prohibited by § 39-16-108;

(57) Introduction of weapons, explosives, intoxicants, drugs, or telecommunication device into a penal institution, as prohibited by § 39-16-201;

(58) Impersonation of licensed professional, as prohibited by § 39-16-302;

(59) Official misconduct, as prohibited by § 39-16-402;

(60) Official oppression, as prohibited by § 39-16-403;

(61) Sexual contact with inmate, as prohibited by § 39-16-408;

(62) Sexual contact with probationer or parolee, as prohibited by § 39-16-409;

(63) False report, as prohibited by § 39-16-502;

(64) Tampering with or fabricating evidence, as prohibited by § 39-16-503;

(65) Coercion of a witness, as prohibited by § 39-16-507;

(66) Coercion of juror, as prohibited by § 39-16-508;

(67) Impeding, intimidating, interfering with, or retaliating for participation in judicial process, as prohibited by § 39-16-510;

(68) Evading arrest in motor vehicle, as prohibited by § 39-16-603(b);

- (69) Compounding a felony, as prohibited by § 39-16-604;
- (70) Escape from penal institution, as prohibited by § 39-16-605;
- (71) Permitting or facilitating escape, as prohibited by § 39-16-607;
- (72) Failure to appear, as prohibited by § 39-16-609;
- (73) Perjury on handgun permit application, as prohibited by § 39-16-702(b)(2);
- (74) Perjury on sex offender registration form, as prohibited by § 39-16-702(b)(3);
- (75) Aggravated perjury, as prohibited by § 39-16-703;
- (76) Subornation of aggravated perjury, as prohibited by § 39-16-705;
- (77) Gifts of adulterated candy or food, as prohibited by § 39-17-106;
- (78) Adulteration of food, liquids, or pharmaceuticals causing bodily injury, as prohibited by § 39-17-107;
- (79) Violating airport security with intent to commit a felony, as prohibited by § 39-17-109(d);
- (80) Preparing property transfer without interest in property, as prohibited by § 39-17-116;
- (81) Filing lien to encumber property without legal basis, as prohibited by § 39-17-117;
- (82) Aggravated riot, as prohibited by § 39-17-303;
- (83) Harassment of victim by person convicted of crime, as prohibited by § 39-17-308(b);
- (84) Abuse of corpse or sale or purchase of buried human skeletal remains, as prohibited by § 39-17-312;
- (85) Especially aggravated stalking, as prohibited by § 39-17-315(d)(1);

(86) Manufacture, delivery, sale, or possession of controlled substance, as prohibited by § 39-17-417;

(87) Simple possession or casual exchange of controlled substance where person has two (2) prior simple possession convictions and the current violation is for heroin, as prohibited by § 39-17-418(e);

(88) Selling glue for unlawful purpose, as prohibited by § 39-17-422(c);

(89) Counterfeit controlled substance, as prohibited by § 39-17-423;

(90) Unlawful drug paraphernalia uses and activities, as prohibited by § 39-17-425(b);

(91) Prescribing or selling steroid for unlawful purpose, as prohibited by § 39-17-430;

(92) Promoting manufacture of methamphetamine, as prohibited by § 39-17-433;

(93) Initiating process to result in manufacture of methamphetamine, as prohibited by § 39-17-435;

(94) Possession of the hallucinogenic plant salvia divinorum or the synthetic cannabinoids, second or subsequent violation, as prohibited by § 39-17-438;

(95) Manufacture or sale of imitation controlled substance, as prohibited by § 39-17-453;

(96) Manufacturing, delivering, dispensing, selling, or possessing with intent to do so a controlled substance analogue, as prohibited by § 39-17-454(c);

(97) Aggravated gambling promotion, as prohibited by § 39-17-504;

(98) Lotteries, chain letters, and pyramid clubs valued at ten thousand dollars (\$10,000) or more, as prohibited by § 39-17-506(c)(4);

- (99) Lottery fraud, as prohibited by § 39-17-607;
- (100) Making materially false statement on lottery application or record, as prohibited by § 39-17-608;
- (101) Engaging in gambling under pretense of charitable gaming event, as prohibited by § 39-17-654(a);
- (102) Unauthorized person conducting charitable gaming event, as prohibited by § 39-17-654(c);
- (103) Attempting to influence the winning of prize in charitable gaming event, as prohibited by § 39-17-656(b);
- (104) Selling service in connection with charitable gaming event on contingency basis, as prohibited by § 39-17-657;
- (105) Employment of minors in distribution of obscene material, as prohibited by § 39-17-902(b);
- (106) Possession of prohibited weapon, as prohibited by § 39-17-1302;
- (107) Restrictions on firearms ammunition, as prohibited by § 39-17-1304(c);
- (108) Carrying weapons during judicial proceedings, as prohibited by § 39-17-1306;
- (109) Possession of firearm after convicted of felony involving the use or attempted use of force, violence, or a deadly weapon, as prohibited by § 39-17-1307(b)(1)(A);
- (110) Possession of a handgun by person convicted of a felony, as prohibited by § 39-17-1307(c);

(111) Unlawful possession of a dangerous weapon other than firearm with intent to employ it during commission of dangerous felony, as prohibited by § 39-17-1307(d);

(112) Carrying weapons on school property, as prohibited by § 39-17-1309;

(113) Parent providing handgun to juvenile, as prohibited by § 39-17-1320(b);

(114) Committing certain offenses while wearing body vest or armor, as prohibited by § 39-17-1323; and

(115) Possession of firearm during commission or attempt to commit dangerous felony, as prohibited by § 39-17-1324.

40-32-204.

If, after the person's records have been sealed, the person is charged with a new offense other than a moving or nonmoving traffic offense, then the court that ordered the records to be sealed shall rescind the order pending the disposition of the new charge. If the person is convicted of the new offense, then the court shall order the records to be unsealed. If the new charges result in any other final disposition, then the court shall reinstate the order sealing the person's records.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.